

Durga Ispat Pvt. Ltd. v. M.D. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 17 November 2018 · Writ-C No. 48192 of 2008 · **Writ dismissed following Dev Prayag Paper Mill on additional security.**

HEADNOTE

A writ challenging an additional-security demand and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the Division Bench judgment dated 21 March 2017 in Dev Prayag Paper Mill.

FACTUAL SUMMARY

Durga Ispat Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand for additional security for electricity supply, with a warning of action if unpaid in time, and also attacked clause (1) of para 4.20 of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003. Counsel accepted that identical petitions had been dismissed on 21 March 2017 in Dev Prayag Paper Mill, a judgment then pending before the Supreme Court.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; vires of clause 4.20(1) vis-à-vis s.47(5)

HOLDING

The writ challenging the additional-security demand and clause 4.20(1) of the Supply Code, 2005—in so far as it provides that the distribution licensee may give the consumer a choice to opt—as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the order dated 21 March 2017 in Dev Prayag Paper Mill (Writ-C No. 30898 of 2016). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 Allahabad High Court	Identical additional-security and clause 4.20 challenges dismissed; followed as the lead order.		1	Referred